

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

May 14, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
3	25-01485306 <i>Creditors Adjustment Bureau, Inc. vs. The Bisogno Company</i>	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Compel Response to Requests for Admissions
4	24-01416984 <i>Dela Cruz vs. Factura</i>	Motion to Set Aside/Vacate Default and Judgment Defendant Jennie Factura’s Motion to Set Aside Default and Vacate Default Judgment is DENIED. Defendant moves for an order setting aside the default judgment entered against her pursuant to Code of Civil Procedure section 473, subdivision (b) on the grounds of inadvertence, mistake, and/or excusable neglect, Code of Civil Procedure section 473.5, and the Court’s equitable powers. Code of Civil Procedure section 473 Code of Civil Procedure section 473, subdivision (b) permits the court to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” A motion seeking relief under section 473, subdivision (b) must be brought within 6 months “after the judgment, dismissal order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) While “[a] default and default judgment may be set aside pursuant to the provisions of Code of Civil Procedure, section 473, subdivision (b), [] the motion must be made within six months after entry of the default.” (<i>Manson, Iver & York v. Black</i> (2009) 176 Cal.App.4th 36, 42.) The Court entered default against Defendant on 10/9/24. (ROA 20.) Defendant’s motion was filed on 11/17/25 and is therefore untimely. Code of Civil Procedure section 473.5 Defendant also moves pursuant to Code of Civil Procedure section 473.5. Section 473.5, subdivision (a) provides, “When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or a default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.” “A defendant seeking to set aside a default or default judgment under section 473.5 must show, by affidavit, that his or her lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” (<i>Rios v. Singh</i> (2021) 65 Cal.App.5th 871, 885 [citing Code Civ. Proc., § 473.5, subd. (b).])

Plaintiff's complaint was filed on 7/31/24. (ROA 2.) Plaintiff filed a proof of service on 9/16/24 reflecting substitute service on Defendant on 8/24/24. (ROA 9.)

Defendant states in her declaration, "After learning that there was a Complaint against me, I went to the Office of Atty. Jack Richard Thomas (Atty. Thomas) and asked for legal advice sometime in September 2024." (Factura Decl., ¶ 1.)

As Defendant acknowledges she was aware of the complaint against her and sought counsel shortly thereafter, Defendant does not demonstrate she lacked actual notice in time to defend the action.

Accordingly, the Court DENIES Defendant's motion to set aside the default and vacate default judgment under both Code of Civil Procedure section 473 and 473.5.

Equitable relief

Defendant also moves for relief under the Court's equitable powers.

"The court's ability to grant relief under its inherent power is narrower than its ability to grant relief under section 473, subdivision (b). This is especially true after a default judgment has been entered. 'A party who seeks to set aside a default judgment pursuant to the court's equity power must make a substantially stronger showing of the excusable nature of his or her neglect than is necessary to obtain relief under . . . section 473.' As our Supreme Court has explained, '[w]hen a default judgment has been obtained, equitable relief may be given only in exceptional circumstances. '[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court. Beyond this period there is a strong public policy in favor of the finality of judgments and only in *exceptional circumstances* should relief be granted.'" (*Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29 [cleaned up, emphasis in original].)

"A party seeking relief under the court's equitable powers must satisfy the elements of a 'stringent three-pronged test': (1) a satisfactory excuse for not presenting a defense, (2) a meritorious defense, and (3) diligence in seeking to set aside the default." (*Ibid.*)

Defendant was served on 8/24/24. (ROA 9.) Defendant contacted Plaintiff's counsel's office on 9/17/24 to request an extension from the 10/8/24 deadline to respond. (Czech Decl., ¶ 2.) Defendant stated she was still determining whether she would hire counsel or respond in pro per. (Czech Decl., ¶ 2.) Plaintiff did not grant Defendant's request for an extension.

Defendant states that after learning of the complaint, she contacted the office of attorney Jack Richard Thomas and asked for legal advice

“sometime in September 2024.” (Factura Decl., ¶ 1.) Defendant states “there was already an agreement that Atty. Thomas will represent me in this case,” (Factura Decl., ¶ 2.) Though it is unclear exactly when Thomas was retained, it was presumably after Defendant contacted Plaintiff’s counsel’s office on 9/17/24 stating it was yet undetermined whether she would retain counsel or proceed pro per.

Defendant states “Sometime in October 2024, I was informed that the Atty. Thomas passed away on September 24, 2024.” (Factura Decl., ¶ 3.) (The declaration of John Almarez states, “Sometime in October 24, 2024, I was the one who informed Defendant Factura that Atty. Thomas had recently passed away” (Almarez Decl., ¶ 5.) This is preceded by a statement that “On September 24, 2024, I was informed by the family of Atty. Thomas that he suddenly passed away.” (Almarez Decl., ¶ 4.) Thus, it is unclear whether the date of the 24th was unintentionally repeated as Defendant only states she was informed “sometime in October 2024.)

Defendant further states, “Despite Diligent efforts, I was not able to find a representation to replace now deceased Atty. Thomas.” (Factura Decl., ¶ 4.) Defendant does not state what efforts were made to obtain new counsel, when they were made, why they were unsuccessful, or that, for example, a request for additional time to respond to the responsive pleading to obtain new counsel was denied. To the extent Defendant was aware of Mr. Thomas having passed away prior to the deadline for the responsive pleading, Defendant does not sufficiently demonstrate “a satisfactory excuse for not presenting a defense.”

Additionally, Defendant was served by mail with the request for entry of default on 10/9/24. (ROA 20.) Defendant also states she attended an order to show cause hearing on 3/27/25 where she was informed she was already defaulted and then subsequently received the entry of default judgment on 6/5/25. (Factura Decl., ¶¶ 6, 7.)

Thus, though Defendant was aware of the request for entry of default by Plaintiff in October 2024 and informed by the Court that she was defaulted on 3/27/25, Defendant did not obtain new counsel until August 2025 (Factura Decl., ¶ 8) and did not file the instant motion until 11/17/25. Again, Defendant does not provide further information regarding her efforts to obtain counsel after becoming aware of the request for entry of default and subsequent default. Accordingly, the Court finds Defendant has not demonstrated diligence in seeking to set aside the default.

Finally, Defendant states only that the proposed answer attached to the motion “presented meritorious defenses that would avoid any claim by Dela Cruz.” (Mtn. at 5:5-6.) Thus, the Court finds Defendant has not sufficiently satisfied the “meritorious defense” prong for equitable relief.

Accordingly, the Court DENIES Defendant’s motion to set aside the default and vacate default judgment on equitable grounds.

5	22-01267792 Duarte vs. Siegel-Foigelman	Motion to Be Relieved as Counsel of Record The motion of attorneys David E. Outwater and Cathleen L. Mulligan from Outwater & Pinckes, LLP to be relieved as counsel of record for plaintiff Noel Duarte is CONTINUED to _____. California Rules of Court, Rule 3.1362, subdivision (d) requires that: “The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case.” Although the declaration in support of the motion states client was served with the moving papers by mail, the proof of service filed on 3/17/26 does not show moving papers were served on client. (ROA 614) Moving attorneys are to serve all moving papers in compliance with Rule 3.1362, subdivision (d) and file a proof of service no later than 5 court days prior to the continued hearing. Moving attorneys to give notice.
6	24-01441602 Hoang vs. EMPIRE HEALTH SYSTEMS, INC.	Motion for Order Authorizing Substituted Service Plaintiff Anh Duc Hoang’s Motion for Order Authorizing Substituted Service of Defendant Empire Health Systems, Inc. to California Secretary of State is GRANTED. Plaintiff moves for an order pursuant to Corporations Code section 1702 permitting Plaintiff to effectuate service of process on Defendant by serving the office of the California Secretary of State. Corporations Code section 1702, subdivision (a) provides, “If an agent for the purpose of service of process has resigned and has not been replaced or if the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process, or if no agent has been designated, and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20 or subdivision (a) of Section 415.30 of the Code of Civil Procedure or upon the corporation in the manner provided in subdivision (a), (b) or (c) of Section 416.10 or subdivision (a) of Section 416.20 of the Code of Civil Procedure, the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service. Service in this manner is deemed complete on the 10th day after delivery of the process to the Secretary of State.” (Corp. Code, § 1702, subd. (a) [emphasis added].) The term “reasonable diligence” denotes “a thorough, systematic investigation and inquiry conducted in good faith by the party or his

agent or attorney.” (*Watts v. Crawford* (1995) 10 Cal.4th 743, 749.) The basic test is whether the declaration shows plaintiff took “those steps which a reasonable person *who truly desired to give notice* would have taken under the circumstances.” (*Donel, Inc. v. Badalian* (1978) 87 Cal.App.3d 327, 333.)

Thus, before the court can permit service to be made on the Secretary of State, Plaintiff must show that the agent resigned and has not been replaced or cannot be found, *and* Defendant’s designated agent could not be served by hand or by mail and acknowledgment of receipt under Code of Civil Procedure, section 415.30, subdivision (a). (See Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 4:149 [“The court order must be based upon a factual showing (by declaration) that process cannot be served with reasonable diligence upon (i) the corporation’s designated agent (i.e., because the agent resigned and was not replaced or cannot be found at the designated address or if no agent was appointed); *and* (ii) the corporation by any other authorized method].)

Here, Plaintiff’s counsel declares that based on the Secretary of State website as of December 2, 2024, Defendant’s designated agent for service of process was Ta Siu whose address was listed 9550 Flair Drive, Suite 100, El Monte, CA 91731. (Pham Decl., ¶ 4a, Ex. 1.) Plaintiff’s process server attempted service at the El Monte address on December 12, 2024, but found it vacant. (Id., ¶ 4a, Ex. 2.)

On May 12, 2025, Plaintiff’s counsel reviewed the Secretary of State website and learned that Defendant had updated the addresses for its principal place of business to 820 N. Mountain Ave., Ste 103, Upland, CA 91786; its mailing address to 170 East College Street Covina, CA 91723; and Ta Siu’s address to 1928 W. 17th St., Santa Ana, CA 92706. (Pham Decl., ¶ 4b, Ex. 3.) Defendant’s updated Statement of Information listed Ta Siu as both the agent for service of process and Defendant’s Chief Executive Officer. (Id., Ex. 4.)

Plaintiff’s process server attempted service at Ta Siu’s Santa Ana address four times between May 15, 2025 and May 22, 2025. (Pham Decl., ¶ 4c, Exs. 5-7.) The company at that location was Santa Ana Beauty College. (Id., Ex. 5.) Each time, the door was closed and locked and no lights were on inside. (Id., ¶ 4c, Exs. 5, 6.) On May 23, 2025, the process server spoke with an office administrator who said she had never heard of Defendant or Ta Siu. (Id., Ex. 7.)

On May 23, 2025, Plaintiff’s process server tried to serve Defendant at its principal place of business at the Upland address. The receptionist at that location informed the process server that neither Ta Siu nor Defendant were registered to that suite, and the company occupying that location was Montana Affinity Clinic. (Pham Decl., ¶ 4d, Ex. 8.)

On September 26, 2025, Plaintiff’s counsel served Defendant by mail and acknowledgment of receipt; however, it has been over 20 days without a response from Defendant. (Pham Decl., ¶ 5, Ex. 9.)

		Plaintiff's counsel's declaration demonstrates that process cannot be served with reasonable diligence upon the Defendant's designated agent, who cannot be found. Nor can service be reasonably effectuated by any other allowable means. The motion is granted.
7	24-01382178 <i>Kim vs. Kkanbu Restaurant, Inc.</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Form Interrogatories 3) Motion to Compel Answers to Special Interrogatories 4) Motion to Compel Production 5) Motion to Deem Facts Admitted Defendant and Cross-complainant Ai Ran Yang's motions to compel responses to (1) Form Interrogatories – General, Set One, (2) Form Interrogatories – Employment, Set One, (3) Special Interrogatories, Set One, (4) Request for Production, Set One, and (5) deem the truth of any matters in Request for Admissions, Set One, admitted and for sanctions against Cross-defendant Hyun Mi Ki are DENIED as MOOT. On 11/14/25, Defendant and Cross-complainant Ai Ran Yang filed the instant discovery motions regarding discovery propounded on Cross-defendant Hyun Mi Kim. On 8/25/25, however, Defendants and Cross-complainants Kkanbu Restaurant, Inc. and Ai Ran Yang filed a request for entry of default against Cross-defendant Hyun Mi Kim on the cross-complaint filed 4/23/25. (ROA 41.) Default was entered on 8/25/25. “The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered.” (Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc. (1984) 155 Cal.App.3d 381, 385 [citations omitted].) “A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action” (Id. at p. 385-386 [citation omitted].) As default has been entered against Cross-defendant Kim on the Cross-complaint, Cross-defendant Kim is “out of court” and Defendant and Cross-complainant Yang's discovery motions are therefore moot.
8	25-01472504 <i>Maleki vs. Schumacher & Maleki, LLC</i>	Order to Show Cause re: Preliminary Injunction Plaintiff Majed Maleki's Motion for Preliminary Injunction is DENIED. Defendant's objections to evidence (ROAs 139 and 140) are overruled. Plaintiff seeks an injunction prohibiting and limiting Defendant Jenna Schumacher's involvement in the parties' joint interior design business, Defendant Schumacher & Maleki, LLC (“the LLC”) including destroying assets, soliciting clients from the LLC, and generally

	prohibiting Schumacher from engaging in competing interior design work. (Notice, p. 2.) Legal Standard: Code of Civil Procedure section 526(a) provides in part, “(a) An injunction may be granted in the following cases: (1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually. (2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. (3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual. (4) When pecuniary compensation would not afford adequate relief. (5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief.” Although an OSC re: Preliminary Injunction directs the responding party to show cause why the preliminary injunction should not issue, the burden is on the moving party to show all elements necessary to support issuance of a preliminary injunction. (O’Connell v. Superior Court (2006) 141 Cal. App. 4th 1452, 1481.) In deciding whether to issue a preliminary injunction, the court must consider two interrelated factors: (1) the likelihood that the moving party will prevail on the merits, and (2) whether the harm the moving party will likely suffer if the motion is denied outweighs the harm the opposing party is likely to suffer if the motion is granted. (Ketchens v. Reiner (1987) 194 Cal.App.3d 470, 474.) “These two showings operate on a sliding scale: ‘[T]he more likely it is that [the party seeking the injunction] will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue.’ [Citation.]” (Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc. (2016) 6 Cal.App.5th 1178, 1183.) Defendant’s Pending Motions and Discovery: Defendant contends the Court should not rule on the present motion until it first rules on (1) her motion to dismiss based on lack of jurisdiction/failure to join the LLC as an indispensable party, and (2) her
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motion to disqualify Plaintiff's counsel from simultaneously representing Plaintiff and the LLC.

She also contends the Court has not yet ruled on her discovery motion related to the issues raised in this motion, because on 4/16/26 the Court ordered the parties to engage in additional attempts to meet and confer with a continued hearing date of 7/23/26.

Defendant fails to cite legal authority prohibiting the Court from addressing the present motion before her motions to dismiss, disqualify, or compel discovery. Defendant has not filed a separate application for relief in scheduling the motions. Therefore, the Court will consider the merits of the present motion at this time.

Likelihood of Prevailing:

Plaintiff alleges claims for (1) dissolution of LLC and (2) preliminary injunctive relief. Initially, preliminary injunction is an interim remedy, not an independent cause of action so the Court will evaluate Plaintiff's likelihood of prevailing on the first claim for dissolution only.

Plaintiff contends Defendant has begun operating an interior design business (Jenna Schumacher Interior Design, Inc.) which competes with the parties' existing LLC. Plaintiff contends Defendant has been diverting customers and assets from the LLC to her own business in violation of Defendant's fiduciary duties to the LLC.

Plaintiff submits his own declaration stating (1) he and Defendant are 50% members of the LLC, (2) Defendant stated she was leaving the LLC on 11/1/23, (3) Defendant formed her own business on 1/9/24, (4) the parties discussed buyout options but were unable to reach agreement on a consensual dissolution, (5) Defendant resigned as manager on 8/28/24, (6) Defendant began excluding Plaintiff from communications with the LLC's clients regarding ongoing projects, (7) Schumacher's refusal to participate in the LLC has made it impractical to operate the LLC.

Plaintiff's counsel declares that in November 2024, Defendant sent a holiday card announcing her competing business to the LLC's clients. (Levanthal Decl., ¶ 7.) However, Plaintiff's counsel does not state whether Defendant has actually taken any clients from the LLC. Plaintiff generally asserts that the existence of a separate business per se establishes that Defendant is "competing" with the LLC.

Defendant contends Plaintiff has failed to submit evidence that she is actually competing with the LLC, and that California law favors allowing free competition by a former employee. She submits a declaration stating that the custom residential design services provided to each client are unique. However, Defendant does not directly address Plaintiff's contention that

		Defendant would be violating her fiduciary duties as a member of the LLC if she diverted business or assets from the LLC. Notably, Defendant's opposition does not argue that the LLC should not be dissolved or that it is unlikely Plaintiff will prevail on his claim for dissolution. Plaintiff has submitted sufficient evidence to demonstrate it is likely he will prevail on his request to dissolve the LLC based on the undisputed evidence that the parties are no longer willing or able to cooperate in operating the LLC. In fact, both parties apparently want to dissolve the LLC but cannot agree on terms of dissolution. Balance of Harms: Plaintiff seeks a broad injunction which not only precludes Defendant from soliciting the LLC's clients but generally prohibits Defendant from "engaging in or soliciting interior design services" at all. Plaintiff contends Defendant's operation of an independent interior design business violates her fiduciary duties to the LLC because the two businesses are competing for a limited number of clients in the region. However, Plaintiff has not submitted substantial evidence that Defendant's interior design business has actually appropriated the LLC's assets or taken any specific client(s). Plaintiff's declaration extensively describes the parties' negotiations to dissolve the LLC, but includes minimal information about Defendant's separate business and its effect on the LLC. At most, Plaintiff has established Defendant sent a holiday card announcing her new business to the LLC's clients. Therefore, Plaintiff has not demonstrated that Plaintiff individually (or the LLC, although the LLC is not a party to this motion) will suffer substantial harm if the motion is denied. On the other hand, broadly prohibiting Defendant from operating her independent business would result in substantial harm by preventing her from pursuing her career and earning a living now that her involvement in the LLC is diminished. Therefore, Plaintiff has not shown that issuance of a preliminary injunction is necessary at this time.
9	23-01360897 <i>Marin-Gonzalez vs. Escalante Morroquin</i>	Motion to Be Relieved as Counsel of Record The motion of attorney Peter E. Garrell to withdraw as attorney of record for Defendant Kimberly Escalante Morroquin is GRANTED. (Code Civ. Proc. § 284, CRC 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the signed order on client. Moving attorney is to give notice.

10	24-01401746 <i>Nguyen vs. Mercedes Benz USA, LLC</i>	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Production <u>Motion 1</u> Defendant Mercedes-Benz USA, LLC’s Motion to Compel Further Responses to Form Interrogatories, Set One, is DENIED as moot. Defendant moves for an order compelling Plaintiff to serve further verified responses to Form Interrogatories, Set One, Nos. 2.2 and 2.7 and imposing monetary sanctions. On 9/11/25, Plaintiff served supplemental responses and subsequently served verifications. (Achatz Decl., ¶¶ 5-6; Wong Decl., ¶ 6, Ex. 4-6.) On 3/13/26, Plaintiff served verified further supplemental responses. (See Wong Decl., ¶ 9, Exs. 7-10.) Defendant’s reply brief does not identify any specific supplemental responses to the Form Interrogatories at issue that are still deficient. Thus, the motion is moot. Defendant’s request for sanctions is DENIED. Sanctions against Plaintiff are not warranted because Defendant did not make serious attempts to obtain informal resolution prior to filing this motion. Defendant sent a single letter requesting supplemental responses by 9/11/25. (Achatz Decl., ¶¶ 3-4; Wong Decl., ¶ 5, Ex. 3.) Plaintiff did so. (Achatz Decl., ¶¶ 5-6; Wong Decl., ¶ 6, Ex. 4-6.) Instead of making additional attempts to meet and confer after receiving the supplemental responses, Defendant filed these motions three weeks later. (See Wong Decl., ¶ 7.) This was inadequate. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing]. <u>Motion 2</u> Defendant Mercedes-Benz USA, LLC’s Motion to Compel Further Responses to Requests for Production of Documents, Set One, is GRANTED, in part, and DENIED, in part. Defendant moves for an order compelling Plaintiff to serve further verified responses to Production of Documents, Set One, (“RFPs”), Nos.
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2, 6-13, 21-27, 30-33, 35-37 and 39-49 and imposing monetary sanctions.

On 9/11/25, Plaintiff served supplemental responses and subsequently served verifications. (Achatz Decl., ¶¶ 5-6; Wong Decl., ¶ 6, Ex. 4-6.) On 3/13/26, Plaintiff served verified further supplemental responses. (See Wong Decl., ¶ 9, Exs. 7-10.) Defendant's reply brief contends the following RFPs are still deficient: No. 11, 21-22, and 35-37. As such, the Court finds the motion as to the remaining RFPs is moot.

RFP No. 11

This request seeks production of all promotional documents that Plaintiff obtained, received or viewed before Plaintiff purchased the vehicle.

Plaintiff initially responded with objections only. Plaintiff supplemented this response as follows: "Subject to, and without waiving the foregoing objections, Plaintiff responds as follows: [¶] Plaintiff is not withholding any documents based on objections. [¶] Responding party has conducted a diligent search and reasonable inquiry and there are no responsive items in their possession, custody, and control. Plaintiff is informed and believes that documents responsive to this request are in Defendant's possession, custody and control. [¶] Discovery and investigation are ongoing, and Plaintiff reserves the right to amend and/or supplement this response."

Defendant contends this response is not code-compliant because it fails to specify why the documents are not in Plaintiff's possession, custody or control.

The Court agrees. A responding party's statement of inability to comply must, among other things, "specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party." (Code Civ. Proc. § 2031.320.)

Plaintiff's response fails to do so.

Therefore, the motion as to RFP No. 11 is GRANTED.

RFP Nos. 21-22

No. 21 seeks "All DOCUMENTS which support YOUR claim for attorney's fees in the instant lawsuit, including, but not limited to, retainer agreements, contracts, invoices, bills, time sheets, memoranda and correspondence."

No. 22 seeks "All DOCUMENTS which support YOUR contention that YOU are entitled to costs as alleged in YOUR complaint, including, but

not limited to, retainer agreements, contracts, invoices, bills, ledgers, receipts, memoranda and correspondence.

Plaintiff responded to these RFPs with the same objections and the identical substantive response: “Subject to said objections, Plaintiff responds: [¶] Plaintiff has conducted a diligent search and will produce non-privileged, responsive items in their possession, custody, and control. [¶] Discovery and investigation are ongoing, and Plaintiff reserves the right to amend and/or supplement this response.”

Plaintiff never supplemented these responses.

On a motion to compel further responses to requests for production of documents, the moving party bears the initial burden of providing “specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b).) Good cause is shown by establishing both relevance to the subject matter (e.g., how the information in the documents would tend to prove or disprove some issue in the case) and specific facts justifying the discovery (e.g., why such information is necessary for trial preparation or to prevent surprise at trial). (*Glenfed Develop. Corp. v. Sup.Ct. (National Union Fire Ins. Co. of Pittsburgh, Penn.)* (1997) 53 Cal.App.4th 1113, 1117; see also *Kirkland v. Superior Court (Guess?, Inc.)* (2002) 95 Cal.App.4th 92, 98.) Good cause is established through declarations containing “specific facts” rather than mere conclusions. (See Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial (The Rutter Group) § 8:1482; see, e.g., *Fireman's Fund Ins. Co. v. Sup.Ct. (Paine Webber Real Estate Secur.)* (1991) 233 Cal.App.3d 1138, 1141 [holding the plaintiff's desire to review documents for “context” was “a patently insufficient ground” for production of sensitive commercial information].)

Once good cause is shown, the burden shifts to the opposing party to justify any objections made to the disclosure. (*Kirkland, supra*, 95 Cal.App.4th at p. 98.)

Defendant makes no attempt to establish good cause other than stating in its separate statement that these requests are reasonably calculated to lead to the discovery of admissible evidence and the failure to provide the information has impeded Defendant's ability to evaluate Plaintiff's claims and alleged damages.

This explanation, however, fails to explain how Plaintiff's retainer agreement with his counsel, his counsel's billing invoices, etc. will aid Defendant's evaluation of Plaintiff's claims and damages. In addition, on their face, these requests seek documents protected by attorney-client privilege and attorney work product, e.g. “memoranda and correspondence” related to attorney fees and costs.

Therefore, the motion as to RFP Nos. 21-22 is DENIED.

RFP Nos. 35

This request seeks all class action documents Plaintiff received regarding the vehicle. Plaintiff responded with only objections and never supplemented this response.

In its separate statement, Defendant contends that it is entitled to this information because the class action documents relate to the subject vehicle. Without more, however, being related to the subject vehicle does not establish good cause for production. Defendant fails to explain what issues the class action documents tend to prove or disprove. Defendant also fails to explain how such information is necessary for its trial preparation or to prevent surprise at trial.

Therefore, the motion as to RFP No. 35 is DENIED.

RFP Nos. 36-37

No. 36 seeks all documents regarding any other actions pursuant to any lemon law that Plaintiff has been involved in.

No. 37 seeks all documents regarding communications Plaintiff has had relating to any lemon law actions.

Plaintiff responded to both RFPs with objections only and never supplemented these responses.

Defendant contends it is entitled to this information because these RFPs seek specific documents/information related to Plaintiff's motives in bringing this action and his history with other vehicles/lemon law.

Defendant's explanation fails to establish good cause. Defendant fails to explain what issues Plaintiff's motives tend to prove or disprove or how such information is necessary for Defendant's trial preparation or to prevent surprise at trial.

Therefore, the motion as to RFP Nos. 36 and 37 is DENIED.

Sanctions

Defendant's request for sanctions is DENIED for the reasons specified above in the Court's ruling on Defendant's Motion to Compel Further Responses to Form Interrogatories.

Plaintiff is ORDERED to serve further verified responses to RFP No. 11 within 20 days.

Defendant to give notice.

11	25-01514243 <i>Parker vs. AMPCO Contracting Inc.</i>	Motion to Compel Arbitration Defendants AMPCO Contracting Inc. (“AMPCO”) and KML Services, Inc.’s (“KML”) motion to compel plaintiff Felix Parker to submit his claims against Defendants to binding arbitration; and to stay the action pending completion of the arbitration is GRANTED. Defendants move to compel arbitration pursuant to the Federal Arbitration Act (9 U.S.C. § 1, et seq.) and Code of Civil Procedure Sections 1280 et seq. <u>Federal Arbitration Act (“FAA”):</u> The FAA “applies where there is ‘a contract evidencing a transaction involving commerce.’” (<i>Allied-Bruce Terminix Companies, Inc. v. Dobson</i> (1995) 513 U.S. 265, 277 [quoting 9 USC § 2] [emphasis in original].) Here, the agreement to arbitrate submitted by Defendants expressly states, “[t]his Agreement is entered into under the Federal Arbitration Act, and shall be interpreted and construed in accordance with the law and procedures developed under that statute. (Vitta Decl., Ex. A, Section 8.) Therefore, the FAA applies. A court’s role in considering a petition to compel arbitration under the FAA is limited to “determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms.” (<i>Chiron Corp. v. Ortho Diagnostic Sys. Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130.) “In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236 (<i>Pinnacle</i>)). “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (<i>Ibid.</i>) <u>Existence of an agreement to arbitrate which encompasses the claims at issue:</u> Plaintiff entered into an Arbitration Agreement (“Agreement”) with defendant KML on February 4, 2025. (Vitta Decl., Ex. A.) The Agreement provides that: “Any and all claims or controversies arising out of Employee’s application or candidacy for employment, employment, or cessation of employment with the Company shall be resolved through final and binding arbitration pursuant to the Employment Arbitration Rules of the American Arbitration Association (‘AAA’) in existence as of the time the dispute arises. (Vitta Decl., Ex. A, Section 1.) Plaintiff does not dispute signing the Agreement. Therefore, defendant KML has sufficiently shown the existence of an agreement to arbitrate.
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The Complaint alleges wage and hour violations. The Agreement requires arbitration of all claims arising out of Plaintiff's employment. Therefore, the Agreement also covers the claims alleged in the Complaint.

Enforcement by Non-Signatory:

"[T]here are six theories by which a nonsignatory may be bound to arbitrate: '(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary' [citation]." (*Suh v. Superior Ct.* (2010) 181 Cal. App. 4th 1504, 1513.)

AMPCO is not a signatory to the Agreement but moves to compel arbitration under the doctrine of equitable estoppel.

"Under this [equitable estoppel] exception, 'a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claim when the causes of action against the nonsignatory are 'intimately founded in and intertwined with' the underlying contract obligations.' [Citation.]" The doctrine applies where the claims are ' "based on the same facts and are inherently inseparable' " from the arbitrable claims against signatory defendants.' [Citation.]" (*Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, 786 (*Garcia*); see also *Gonzalez v. Nowhere Beverly Hills LLC* (2024) 107 Cal.App.5th 111 (*Gonzalez*).)

Here, the Complaint alleges that "Defendants, and each of them, were the agents, employees, managing agents, supervisors, co-conspirators, parent corporation, joint employers, alter ego, and/or joint ventures of the other Defendants, and each of them, and in doing the things alleged herein, were acting at least in part within the course and scope of said agency, employment, conspiracy, joint employer, alter ego status, and/or joint venture and with the permission and consent of each of the other Defendants." (Complaint, ¶ 3.) Further, the Complaint does not allege that each Defendant separately employed Plaintiff at various times, rather the Complaint alleges that they collectively employed her at all relevant times alleged in the Complaint. Moreover, Plaintiff brings the same claims against both KML and AMPCO defendants, based on the same allegations, all of which arise out of Plaintiff's employment, which is covered under the arbitration agreement.

AMPCO argues that it can enforce the arbitration clause under the doctrine of equitable estoppel because Plaintiff's claims against AMPCO arise entirely from the same employment relationship and alleged conduct underlying his claims against KML. Here, Plaintiff alleges AMPCO and KML were his joint employers, and since the arbitration agreement controls Plaintiff's employment, he is equitably estopped from refusing to arbitrate his claims with AMPCO. (*Garcia*, supra, 11 Cal.App.5th at p. 788.) Therefore, AMPCO may enforce the Agreement under the doctrine of equitable estoppel.

Further, nonsignatory AMPCO may invoke the arbitration agreement under the doctrine of agency. "[A] plaintiff's allegation of an agency relationship among defendants is sufficient to allow the alleged agents to invoke the benefit of an arbitration agreement executed by their principal

even though the agents are not parties to the agreement. [Citations.] Moreover, it would be unfair to defendants to allow John to invoke agency principles when it is to his advantage to do so, but to disavow those same principles when it is not.” (*Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 614-615.) Here, the Complaint alleges “Defendants, and each of them, were the agents . . . of the other Defendants . . .” (Complaint, ¶ 3.)

Therefore, AMPCO may enforce the Agreement under both equitable estoppel and agency.

Defenses to the Arbitration Agreement:

Plaintiff argues the Agreement is unconscionable. Procedural and substantive unconscionability “must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (*Armendariz v. Foundation Health Psychcare Servs., Inc.* (2000) 24 Cal.4th 83, 114.) However, they need not be present in the same degree. (*Ibid.*) A sliding scale approach is used and the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required. (*Ibid.*)

a. Procedural Unconscionability:

“Procedural unconscionability focuses on the elements of oppression and surprise.” (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 177.) “Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice. Surprise involves the extent to which the terms of the bargain are hidden in a prolix printed form drafted by a party in a superior bargaining position.” (*Ibid.*) “[A] finding of procedural unconscionability does not mean that a contract will not be enforced, but rather that courts will scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided.” (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1244 (Baltazar).)

Since the Agreement was offered to Plaintiff on a take-it-or-leave-it basis it is a contract of adhesion. Therefore, there is some minimal degree of procedural unconscionability.

a. Substantive Unconscionability:

“Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create ‘overly harsh’ or ‘one-sided’ results.” (*Serafin, supra*, 235 Cal.App.4th at 177.)

Plaintiff argues that the Agreement contains two substantively unconscionable provisions.

First, Plaintiff argues that paragraph 4 of the Agreement is substantively unconscionable because it strips him of his statutory right under Labor Code 98.2 to appeal to the court. Paragraph 4 provides in pertinent part, “The parties agree that any appeal of an order, decision or award issued by the Labor Commissioner with respect to any such claim, may be made to an arbitrator pursuant to the Expedited Procedures of the AAA Commercial Arbitration Rules, and not to a court of law. The arbitrator

empowered to hear any such appeals shall have experience in arbitrating wage and hour claims. The provisions of this Agreement, and not Labor Code section 98.2, shall otherwise apply to any such appeal.” (Vitta Decl., Ex. A, ¶ 4.)

Plaintiff contends the Agreement requires Plaintiff to appeal a decision of the Labor Commissioner to an arbitrator which eliminates Plaintiff’s statutory right under section 98.2 to appeal a Labor Commissioner determination to the Superior Court. However, Plaintiff fails to cite any authority holding that an agreement to arbitrate a section 98.2 appeal renders an arbitration agreement substantively unconscionable. Further, here, not only is Plaintiff not alleging any Section 98.2 claim, but Section 98.4 expressly allows for arbitration of 98.2 claims. Accordingly, the Agreement is not substantively unconscionable on this ground.

Second, Plaintiff argues that paragraph 5 of the Agreement is substantively unconscionable because it contains a blanket waiver of representative and class actions. Paragraph 5 provides: “To the fullest extent permitted by law, the parties agree that they shall not join or consolidate claims submitted for arbitration under this Agreement with those of any other persons, and that no form of class, collective, or representative action shall be maintained without the mutual consent of the parties.” (Vitta Decl., Ex. A, ¶ 5.)

Plaintiff argues the blanket waiver is substantively unconscionable as applied to representative claims available under California law. Defendant does not dispute the unconscionability of the provision as it applies to PAGA claims but contends Plaintiff has not asserted a PAGA claim or any class claims in this action. (Reply, 4:16-17.) Because there is no PAGA claim involved, here, the Court finds that any PAGA waiver would not render the entire agreement unenforceable, because of the severance provision in paragraph 10 of the Agreement. (See *Mohamed v. Uber Technologies, Inc.* (9th Cir. 2016) 848 F.3d 1201, 1213 [concluding that PAGA waiver in arbitration agreement was invalid under California law but severable from the remainder of the agreement].) “[W]hile a trial court has considerable discretion with respect to severability, the statute contemplates that refusal to enforce an agreement altogether should be limited to situations where the agreement is ‘ “permeated” ’ by unconscionability.” (*Farrar v. Direct Com., Inc.* (2017) 9 Cal.App.5th 1257, 1274.) To the extent Plaintiff alleges a cause of action seeking restitution under Business and Professions Code section 17200, the Agreement’s waiver language does not prevent Plaintiff from pursuing the claim as alleged.

Accordingly, the Court finds Plaintiff has not shown that the arbitration agreement is unenforceable.

The motion is GRANTED, and the action is stayed, pending the completion of arbitration.

Defendants to give notice.

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12	24-01407549 <i>Sandoval vs. General Motors, LLC.</i>	Motion to Set Aside/Vacate Dismissal Plaintiffs’ Christian Sandoval and Alejandro Sandoval’s Motion to Set Aside Dismissal is GRANTED. The dismissal was entered on 12/15/25. Plaintiffs moved to set aside on 12/18/25. Thus, Plaintiff’s motion is timely. Additionally, Plaintiffs’ counsel provides a declaration stating attorney Tim Butler was present and intended to appear at the hearing for this case but had 2 other appearances on the same morning. (Butler Decl., ¶¶3-11.) Thus, relief is mandatory, and the dismissal is set aside. (Code Civ. Proc., § 473, subd. (b).)
14	24-01407549 <i>Vandermeer vs. Bombardier Recreational Products, a corporation</i>	Motion for Summary Judgment and/or Adjudication Defendant BRP US, Inc.’s Motion for Summary Judgment is DENIED. <u>Legal Standard</u> Code of Civil Procedure section 437c(c) states, “(c) The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” Section 437c(f)(1) provides, “(f)(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” Section 437c(o)-(p) states: “(o) A cause of action has no merit if either of the following exists: (1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded. (2) A defendant establishes an affirmative defense to that cause of action. (p) For purposes of motions for summary judgment and summary adjudication:

(2) A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.”

Merits

The elements of a Civil Code, section 1793.2(d)(2) claim are: “(1) the plaintiff purchased a new vehicle with a manufacturer's express warranty; (2) the vehicle did not conform to the express warranty; (3) the manufacturer or its representative could not service or repair the vehicle to conform to the express warranty after a “reasonable number” of attempts; and (4) the manufacturer then failed to “promptly” replace or pay restitution for the vehicle.” (*Ramos v. FCA US LLC* (E.D. Cal. 2019) 385 F.Supp.3d 1056, 1072.) “The general rule is that an express warranty ‘does not cover repairs made after the applicable time or mileage periods have elapsed.’ ” (*Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 830 [overruled by statute on separate grounds].)

Defendant has satisfied its burden of disproving an element of Plaintiff’s claims. Defendant has provided evidence the Plaintiff purchased the vehicle on July 31, 2019, with a 2 year warranty. (Plesca Decl., Ex. A.) Defendant also presents evidence the vehicle was first presented for a warranty repair on August 2, 2022. (Plesca Decl., Ex. A.) Thus, Defendant has met its burden of showing the first repair did not occur during the warranty period.

Thus, the burden shifts to Plaintiff to prove there is an issue of material fact as to whether the first repair occurred during the warranty period.

Plaintiff has satisfied her burden of establishing an issue of material fact as to the time of the first warranty repair. Plaintiff submits a repair order from Moto United La Habra from April 20, 2021. (Avila Decl., Ex. A.) The repair order notes Plaintiff complained the vehicle was going into “limp mode” and cylinder 3 was not firing properly. (Avila Decl., Ex. A.) Thus, there is an issue of material fact as to whether Plaintiff presented the vehicle for repair during the warranty period.

“The language in Code of Civil Procedure section 437c subdivision (f) makes it clear that a motion for summary adjudication cannot be considered by the court unless the party bringing the motion duly gives notice that summary adjudication is being sought. [Citations.] ‘If a party desires adjudication of particular issues or subissues, that party must

		make its intentions clear in the motion....’ [Citation.]” (<i>Gonzales v. Superior Court</i> (1987) 189 Cal.App.3d 1542, 1545–1546.) Here, Defendant has only moved for summary judgment and not summary adjudication. Thus, failure to dispose of the action entirely is cause to deny the Motion. Further, Defendant’s argument as to the remaining causes of action rely on its argument the first cause of action for breach of express warranty is defective.
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